

CHAPTER 28.

An Act to make provision with respect to leave of absence from India of the Governor-General, Commander-in-Chief, Governors and members of Executive Councils, and with respect to the appointment of Commander-in-Chief.

[1st August 1924.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. For sections eighty-six and eighty-seven of the Government of India Act, there shall be substituted the following sections:—

Amendment of
ss. 86 and 87
of the Govern-
ment of India
Act.

86.—(1) The Secretary of State in Council may grant to the Governor-General and, on the recommendation of the Governor-General in Council, to the Commander-in-Chief, leave of absence for urgent reasons of public interest, or of health or of private affairs.

Power to
grant leave
of absence to
Governor-
General, &c.

(2) The Secretary of State in Council may, on the recommendation of the Governor-General in Council, grant to a Governor, and the Governor-General in Council, or a Governor in Council or a Lieutenant-Governor in Council, as the case may be, may grant to any member of his Executive Council (other than the Commander-in-Chief) leave of absence for urgent reasons of health or of private affairs.

(3) Leave of absence shall not be granted to any person in pursuance of this section for any period exceeding four months nor more than once during his tenure of office:

Provided that the Secretary of State in Council may, if he thinks fit, extend any period of leave so granted, but in any such case the reasons for the extension shall be set forth in a minute signed by the Secretary of State and laid before both Houses of Parliament.

(4) Where leave of absence is granted to any person in pursuance of this section, he shall retain his office during the period of leave as originally granted, or, if that period is extended by the Secretary of State in Council, during the period as so extended, but, if his absence exceeds that period, his office shall be deemed to have become vacant in the case of a person granted leave for urgent reasons of public interest as from the termination of that period and in any other case as from the commencement of his absence.

(5) Where a person obtains leave of absence in pursuance of this section, he shall be entitled to receive during his absence such leave-allowances as may be prescribed by rules made by the Secretary of State in Council, but, if he does not resume his duties upon the termination of the period of the leave, he shall, unless the Secretary of State in Council otherwise directs, repay, in such manner as may be so prescribed as aforesaid, any leave-allowances received under this subsection.

(6) If the Governor-General or the Commander-in-Chief is granted leave for urgent reasons of public interest, the Secretary of State in Council may, in addition to the leave-allowances to which he is entitled under this section, grant to him such further allowances in respect of travelling expenses as the Secretary of State in Council may think fit.

(7) Rules made under this section shall be laid before both Houses of Parliament as soon as may be after they are made.

Acting
appoint-
ments
during the
absence
of the
Governor-
General, &c.
on leave.

87.—(1) Where leave is granted in pursuance of the foregoing section to the Governor-General, or to the Commander-in-Chief, or to a Governor, a person shall be appointed to act in his place during his absence, and the appointment shall be made by His Majesty by warrant under the Royal Sign Manual. The person so appointed during the absence of the Commander-in-Chief may, if the Commander-in-Chief was a member of the Exe-

cutive Council of the Governor-General, be also appointed by the Governor-General in Council to be a temporary member of that Council.

(2) The person so appointed shall, until the return to duty of the permanent holder of the office, or, if he does not return, until a successor arrives, hold and execute the office to which he has been appointed and shall have and may exercise all the rights and powers thereof and shall be entitled to receive the emoluments and advantages appertaining to the office, foregoing the emoluments and advantages (if any) to which he was entitled at the time of his being appointed to that office.

(3) When during the absence on leave of the Governor-General a Governor is appointed to act in his place, the provisions of this section relating to the appointment of a person to act in the place of a Governor to whom leave of absence has been granted in pursuance of the foregoing section shall apply in the same manner as if leave of absence had been so granted to the Governor.

2. For subsection (4) of section ninety-two of the Government of India Act, there shall be substituted the following subsections:—

Amendment
of s. 92 of
Government
of India Act.

(4) Until the return to duty of the member so incapable or absent, the person temporarily appointed shall hold and execute the office to which he has been appointed, and shall have and may exercise all the rights and powers thereof, and shall be entitled to receive the emoluments and advantages appertaining to the office, foregoing the emoluments and advantages (if any) to which he was entitled at the time of his being appointed to that office.

(4A) When a member of an Executive Council is by infirmity or otherwise rendered incapable of acting or attending to act as such and a temporary member of council is appointed in his place, the absent member shall be entitled to receive half his salary for the period of his absence.

Appoint-
ment of
Command-
er-in-Chief.

3. At the beginning of section nineteen of the Government of India Act the following subsection shall be inserted :—

(1) The Commander-in-Chief of His Majesty's forces in India is appointed by His Majesty by warrant under the Royal Sign Manual.

Short title,
construc-
tion, and
printing.
9 & 10 Geo. 5.
c. 101.

4.—(1) This Act may be cited as the Government of India (Leave of Absence) Act, 1924.

(2) Subsection (2) of section forty-five of the Government of India Act, 1919, which relates to the effect of amendments to and the printing of the Government of India Act shall have effect as if it were herein re-enacted and in terms made applicable to the amendments effected by this Act.

CHAPTER 29.

An Act to extend the duration of the Local Authorities (Emergency Provisions) Act, 1923.
[1st August 1924.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Extension
of duration
of 13 & 14
Geo. 5. c. 6.

1. The provisions of the Local Authorities (Emergency Provisions) Act, 1923, mentioned in the Schedule to this Act, shall have effect as if for references therein to "nineteen hundred and twenty-four" there were substituted references to "nineteen hundred and twenty-six."

Short title
and con-
struction.

2. This Act may be cited as the Local Authorities (Emergency Provisions) Act, 1924, and shall be construed as one with the Local Authorities (Emergency Provisions) Act, 1923, and that Act and this Act may be cited together as the Local Authorities (Emergency Provisions) Acts, 1923 and 1924.
